

Whereas the United States has an honorable history defending and promoting human rights in Sri Lanka;

Whereas the United Nations Convention on the Prevention and Punishment of the Crime of Genocide defines genocide as “any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such:

- a) killing members of the group;
- b) causing serious bodily or mental harm to members of the group;
- c) deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;
- d) imposing measures intended to prevent births within the group; and
- e) forcibly transferring children of the group to another group”;

Whereas, from January to May of 2009, the Sri Lankan government encouraged Tamil civilians to gather into No Fire Zones that were later fired upon;

Whereas the United Nations estimates indicate upwards of 70,000 Tamil civilians lost their lives in the bombardment of “No Fire Zones” in Sri Lanka during 2009;

Whereas, historically, journalists and United Nations officials have been denied opportunities to conduct independent investigations in Sri Lanka;

Whereas multiple non-governmental organizations have documented atrocities committed by both the Liberation Tigers of Tamil Eelam and the Government of Sri Lanka;

Whereas, following the cessation of the conflict, the forced containment of Tamil civilians in government-sponsored refugee camps with deplorable conditions led to the loss of thousands of more lives;

Whereas the Government of Sri Lanka has withdrawn from United Nations Human Rights Council Resolution 30/1, the goal of which was “Promoting reconciliation, accountability, and human rights” in Sri Lanka;

Whereas, on February 14, 2020, United States Secretary of State Michael Pompeo sanctioned Sri Lankan Lieutenant General Shavendra Silva from entry into the United States due to “gross violations of human rights, namely extrajudicial killings,” which occurred during the final phases of the Sri Lankan conflict in 2009;

Whereas the late, distinguished Professor Elie Wiesel, on June 30th, 2009, made a public appeal that “Tamil people are being disenfranchised and victimized by the Sri Lankan

authorities...The Tamil people must be allowed to live in peace and flourish in their homeland,” and called for the injustice to end; and

Whereas the Elie Wiesel Genocide and Atrocities Prevention Act of 2018 (Public Law 115–441) establishes that atrocities prevention represents a United States national interest, and affirms that it is the policy of the United States to pursue a United States Government-wide strategy to identify, prevent, and respond to the risk of atrocities by “strengthening diplomatic response and the effective use of foreign assistance to support appropriate transitional justice measures, including criminal accountability, for past atrocities”: Now, therefore, be it

*Resolved*, That it is the sense of the House of Representatives the it is the policy of the United States-

- 1) to recognize the systematic massacres of Tamil civilians in “No Fire Zones” during the end of the Sri Lankan civil war as genocide;
- 2) to encourage the Government of Sri Lanka to comply with United Nation Human Rights Council Resolution 30/1; and
- 3) to support credible and transparent mechanisms of justice and reconciliation to ensure a stable future for Sri Lanka.